

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Thailand

Organization or entity responsible for the preparation of the report: Thai National Commission for UNESCO

Name of contact person: Mr. Thanapon Khanthawichai

Email and telephone number of contact person: thanapon@sueksa.go.th tel.: (+66)63 549 8995

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☒ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☒ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

Thailand is carefully considering the ratification of the **Convention against Discrimination in Education**. The process involves a thorough review by relevant government bodies, such as the Ministry of Foreign Affairs, Ministry of Defence and the Ministry of Education, to ensure the convention aligns with national laws. The government is also consulting various stakeholders to assess the potential impacts and necessary legal reforms. While no official ratification has occurred yet, the country is in the process of evaluating its options and preparing for possible adjustments to meet international standards on non-discrimination in education.

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

☒ Yes: Have the provisions of the Convention been invoked?

☒ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

1. Constitutional Court
2. Administrative Court
3. Court of Justice (Criminal and Civil Jurisdiction)
4. Juvenile and Family Court
5. Department of Children and Youth, Ministry of Justices
6. Administrative Authorities for instance the Ministry of Education, the Ministry of Higher Education, Science Research and Innovation, the Ministry of Defense, the Ministry of Interior, etc.
7. The National Human Rights Commission of Thailand (NHRCT)

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- If yes, please provide reference:

Thailand has established several laws and policy frameworks related to education, which guide the development, implementation, and management of the educational system. These legal and policy measures are designed to ensure access to quality education for all citizens and to promote lifelong learning, equality, and the holistic development of individuals. They address various aspects, such as compulsory education, higher education, vocational training, and specific policies for marginalized and indigenous communities to promote inclusive education and reduce disparities in access to learning opportunities.

Key laws and policies related to education in Thailand include:

1. **The National Education Act (1999, amended in 2002):** This foundational law sets the framework for Thailand's educational system, emphasizing equal access to quality education, lifelong learning, and decentralized administration. It mandates nine years of compulsory education and promotes the development of learners' skills, knowledge, and ethics.
2. **The Constitution of Thailand (2017):** The current constitution guarantees the right to free education for 12 years, ensuring equal opportunities for all citizens, regardless of their economic or social background, including specific provisions for marginalized groups like indigenous peoples and ethnic minorities.
3. **The 20-Year National Strategy (2018-2037)** aims to ensure Thailand's stability and sustainability, with a focus on protecting rights and freedoms. Key provisions include:

Strategy 4: Creating Opportunities and Social Equity – Focuses on reducing inequality and providing equal access to education, healthcare, and services for marginalized groups.

Strategy 6: Re-balancing and Developing the Government Administration System – Aims to improve governance and efficiency, including reforms in the education system to enhance access and accountability across all regions.
4. **The 13th National Economic and Social Development Plan (2023-2027)** emphasizes the development of a quality, inclusive, and equitable education system. Its goal is to ensure that Thailand's education can adapt to global changes and meet future societal needs. The plan focuses on improving educational outcomes for all, reducing disparities, and preparing students with the skills needed to thrive in a rapidly changing world.
5. **The Basic Education Core Curriculum (2008):** This policy sets the standards for basic education in Thailand, focusing on developing essential knowledge, skills, and attitudes to prepare students for life, work, and further study. It emphasizes critical thinking, problem-solving, and adaptability in a rapidly changing world.
6. **The Equitable Education Fund (2018):** Established to reduce educational inequality, this fund provides financial support to underprivileged students, focusing on closing the education gap between urban and rural areas and ensuring that students from disadvantaged backgrounds have access to quality education.

These laws and policies collectively shape Thailand's education system, aiming to promote equitable access, quality improvement, and lifelong learning for all segments of society.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

1. The **Constitution of the Kingdom of Thailand (B.E. 2560 (2017))** guarantees the **right to education** for all citizens. **Section 53** ensures free and compulsory education for at least **12 years** (primary and secondary). **Section 57** mandates the state to promote high-quality, equitable education for all, aiming to improve the quality of life and foster social development.
2. The **National Education Act of B.E. 2542 (1999)** expanded compulsory education in Thailand from **6 years to 9 years**, ensuring that all children receive **12 years of basic education** free of charge. This reform provides children with the opportunity to continue their education at higher levels or to enter the workforce, promoting equal access to education for all.
3. The **National Education Plan 2017-2036** envisions "**All Thais receiving high-quality education and lifelong learning, living happily, in alignment with the philosophy of sufficiency economy and the changes of the 21st century.**" The plan aligns with Sustainable Development Goals (SDGs) and domestic contexts such as improving education quality across all age groups, demographic changes, income distribution inequalities, and environmental crises.
4. The **Equitable Education Fund** for the underprivileged was established under The Equitable Education Fund Act 2018, which provides financial aid to underprivileged children and youth as well as conducting systematic research to support and develop teachers.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

In Thailand, discrimination in education is explicitly prohibited in Thailand based on several grounds, as outlined in key legal documents such as the Constitution of the Kingdom of Thailand and the National Education Act. These laws ensure equal access to education for all citizens, regardless of factors such as race, gender, religion, disability, or social status. The legislation is designed to promote fairness, inclusivity, and the right to quality education for everyone, particularly marginalized and vulnerable groups.

The prohibitions on discrimination in education outlined above align with principles in the **Universal Declaration of Human Rights (UDHR)**, which is a key document from the United Nations that sets forth fundamental human rights. Specifically:

- **Article 26** of the **Universal Declaration of Human Rights (UDHR)** states, “Everyone has the right to education. Education shall be free, at least in the elementary and fundamental stages. It shall promote understanding, tolerance, and friendship among all nations, racial or religious groups, and shall further the activities of the United Nations for the maintenance of peace.”

Additionally, these principles are consistent with international commitments under the **Convention on the Rights of the Child (CRC)**, which Thailand has ratified, as well as the **Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)** and the **Convention on the Rights of Persons with Disabilities (CRPD)**, all of which emphasize the right to education free from discrimination.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☐ In higher education

☒ In adult education and alternative learning

- Please provide details:

- Thailand's education policy focuses on creating a comprehensive and high-quality education system, aiming for universal access to education for everyone, including those in remote areas or facing economic challenges. Additionally, there is a focus on reducing educational inequality by addressing the needs of disadvantaged groups, such as individuals with disabilities and children from impoverished backgrounds.

- Thailand is committed to achieving the Sustainable Development Goals in education through the implementation of several key strategic frameworks. These include the 20-Year National Strategy (2018-2027), which focuses on improving education quality and developing 21st-century skills. The 13th National Economic and Social Development Plan (2023-2027) outlines educational reforms aimed at creating a high-quality, inclusive education system, reducing educational inequality, developing

teachers and educational personnel, and integrating technology into learning in the digital age. Additionally, the National Education Plan (2017-2036) emphasizes promoting lifelong learning and reducing disparities to foster holistic development of students, ensuring both academic excellence and well-being

- In 2024, the Ministry of Education announced the **“Thailand Zero Dropout”** policy, which aims to reduce the number of students dropping out of the education system to **"zero."** This policy focuses on integrating multi-dimensional data and creating a referral system to re-engage children and youth in flexible learning environments, with cooperation from the Ministry of Interior through the Provincial Education Committees, which include provincial governors and education officers.

- The **“Anywhere Anytime”** policy ensures that education is a human right provided at no cost, with a focus on employability upon completion. This policy emphasizes a learner-centered approach by developing diverse learning systems or platforms to enhance learning opportunities and reduce educational inequality. Additionally, it promotes private sector and industry involvement in supporting and managing education, helping students earn income while studying and securing employment after graduation (Learn to Earn). This includes continuous vocational education to develop technical skills in high-demand fields that match labor market needs.

- Thailand has been committed to achieving **gender equality and ensuring access to education for vulnerable groups** through the continuous development of policies and legislation aimed at promoting equal educational opportunities for all children. This effort includes several key areas that impact the enhancement of opportunities and reduction of disparities in the education system.

-Thailand emphasizes education for **ethnic and indigenous groups** by promoting policies that respect cultural and linguistic diversity. This is achieved by training teachers with the knowledge and skills needed to support vulnerable groups, including the ability to communicate effectively with children from diverse ethnic backgrounds, ensuring that education is inclusive, responsive, and meets the specific needs of each student.

- The Education Equality Fund (EEF) of Thailand was established under the Education Equality Fund Act of 2018. Its primary objectives are to provide financial support for children and youth with the greatest needs and to reduce educational inequality by fostering collaboration with various groups and conducting systematic research to enhance teacher effectiveness. At present, EEF has implemented significant initiatives to reduce educational inequality. These include various projects focused on promoting educational equity and removing barriers to education for children and youth in need of special support.

☒ Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please provide details:

The **Ministry of Education** in Thailand is undertaking a significant reform of the country's **core curriculum**, with a focus on shortening school hours and shifting toward **non-classroom learning** methods. This overhaul is being led by the **Office of the Basic Education Commission (OBEC)**, which is responsible for reviewing and updating the current curriculum. The current curriculum has been in place since 2008, and the goal of this reform is to modernize and adapt it to meet contemporary educational needs.

One of the main objectives of the reform is to **reduce the number of hours spent in school**, as research has shown that Thai students have some of the **longest school hours** globally. For example, students in Thailand, particularly in primary and secondary levels, are required to attend school for extended hours each day, which can lead to burnout and fatigue. By shortening school hours, the Ministry hopes to create a more balanced and effective educational experience for students.

The reform also includes a focus on alternative learning methods, such as online education, project-based learning, and hands-on activities. This approach aims to encourage more **active learning**, where students engage in practical, real-world experiences, rather than just passive learning through lectures and textbook-based instruction. The overall goal is to improve the quality of education while also making it more aligned with the needs of the modern world.

On **December 19, 2022**, the **Ministry of Education** in Thailand announced a new curriculum management structure for educational institutions. This structure encompasses **eight learning areas** and **one basic subject in history**, with a focus on several key educational goals.

The guidelines emphasize helping students **take pride in their national identity** and develop a deeper understanding of their country's history. The curriculum encourages students to use **historical methods to analyze events systematically**, fostering critical thinking and a better understanding of human life and social coexistence. It also aims to **adapt to changes over time** and various influencing factors, equipping students to be more flexible and responsive to a dynamic world.

Additionally, the reform highlights the importance of teaching **good citizenship and ethical behavior**, encouraging students to be responsible members of society who contribute positively to their communities. This curriculum is designed to create a well-rounded education that not only focuses on academic achievement but also on moral and civic development.

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

Framework of Cooperation for Sustainable Development, 2022-2026

The Thai government and the United Nations have agreed on a framework to develop human capital and enhance public access to education. This framework aligns with the UN's focus on improving accessibility, responsiveness, and quality of public services to transform Thailand. It aims to elevate the quality of education and lifelong learning, promote good employment opportunities, emphasize environmentally friendly education, early childhood development, and skills matching market demands. Key initiatives include expanding digital education platforms and electronic learning

through improved infrastructure, digital equipment, teacher training, and digital citizenship skills development.

The Committee for Advancing Sustainable Development Goals in Education

The Ministry of Education has established a committee to advance the Sustainable Development Goals (SDGs) in education. This committee is responsible for setting the framework, guidelines, and objectives for implementing SDG 4. It also reviews, oversees and monitors progress, and addresses any challenges encountered during implementation to ensure the overall success of the education-related SDG initiatives. The committee is chaired by the Permanent Secretary of the Ministry of Education, with the Minister of Education and the Deputy Minister of Education serving as advisors. The committee includes senior executives from the Ministry, experts, and representatives from relevant ministries and agencies as members.

The Committee for Advancing Sustainable Development Goals in Education was established an effective operational framework and a solid foundation for sustainable education development. It fosters strong collaboration and coordination among relevant agencies, ensuring that Thailand can achieve the Sustainable Development Goals in education effectively and sustainably.

The **SDG4 Roadmap** was implemented to align Thailand's education system with **Sustainable Development Goal 4 (SDG4)**, which aims to ensure quality, inclusive, and equitable education and promote lifelong learning opportunities for all. This roadmap provides a clear framework for the effective implementation of SDG4, serving as a tool for monitoring and evaluating progress. It guides the **Ministry of Education's** actions to ensure they align with policies set by the **Sustainable Development Committee**, supporting effective planning and execution of education initiatives. This alignment ensures Thailand's education system contributes to global sustainability goals while fostering sustainable progress both nationally and locally.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|---|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| | ☒ Multilingual and intercultural education is supported |

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

☒ Teachers are trained on inclusive education¹⁶ and to value diversity

☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance

☐ Other:

The Ministry of Education, Thailand is dedicated to achieving **SDG 4**, which aims to ensure that all children, both girls and boys, complete quality and equitable primary and secondary education free of charge by 2030. To meet this goal, the ministry is taking steps such as enacting relevant laws, establishing appropriate policies, and improving teaching methods. These efforts include developing curricula that address the diverse needs of all student groups, promoting access to education regardless of economic barriers, and enhancing the quality of education to ensure effective learning outcomes and equal opportunities for all students.

Moreover, Thailand has actively engaged in close cooperation with ASEAN member states and international organizations to achieve Goal 4 of the Sustainable Development Goals, which focuses on providing quality and inclusive education for all. This cooperation is realized through significant regional and global agreements and declarations. The collaborative efforts aim to address issues related to educational access and enhance the quality of education across the Southeast Asian region. By working together, these partnerships seek to overcome challenges and ensure that educational opportunities are equitable and of high quality for everyone.

- **ASEAN Declaration on Strengthening Education for Out-of-School Children and Youth**

Thailand, in collaboration with ASEAN member countries, has developed the "ASEAN Declaration on Strengthening Education for Out-of-School Children and Youth (OOSCY)." This declaration aims to protect and support children and youth who are out of school, such as those from poor backgrounds, those with disabilities, and ethnic minorities who are often excluded from the education system.

- **Bangkok Declaration on Advancing Partnership in Education for 2030 Agenda for Sustainable Development in ASEAN**

Thailand has collaborated with ASEAN, UNESCO, UNICEF, and the SEAMEO Secretariat to develop the "Bangkok Declaration on Advancing Partnership in Education for 2030 Agenda for Sustainable Development in ASEAN." This declaration is pivotal for advancing education partnerships to achieve the Sustainable Development Goals (SDGs) by 2030.

- **Bangkok Statement 2022: Pathways for Revitalizing and Transforming Education in the Asia-Pacific Region**

Thailand hosted the Asia-Pacific Ministerial Education Conference from June 5-7, 2022, to exchange experiences, insights, and strategies for addressing the evolving global context and the recovery of education from the COVID-19 pandemic. The conference endorsed the "**Bangkok Statement 2022**," which aims to revitalize learning and transform education in the Asia-Pacific region to ensure quality and equitable education for all. The Statement emphasizes the need to recover learning and reopen schools to address the increased educational disparities and severe learning crises, particularly among vulnerable groups. For transforming education, the statement outlines several priorities: addressing exclusion and inequality, improving educational quality and relevance, developing skilled teachers, leveraging digital technology in education,

¹⁶

Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

planning, overseeing, and monitoring educational outcomes, and increasing investment in education to meet minimum standards and enhance inclusivity.

- **The Buriram Joint Statement from the 13th ASEAN Education Ministers' Meeting (August 2024)** focused on advancing education in the digital era. It reaffirmed ASEAN's commitment to modernizing education systems, addressing digital transformation, and bridging human resource gaps. The statement highlighted key initiatives such as improving digital literacy, supporting mental health for educators and students, and enhancing inclusivity, particularly for out-of-school youth.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Ministry of Education has established a systematic framework to achieve Goal 4 on education by developing a comprehensive and step-by-step educational plan. This includes setting targets and indicators aligned with both national and global education management contexts. A guiding plan has been created to drive education towards achieving SDG 4, which encompasses consulting, systematic monitoring and evaluation frameworks, and continuous oversight of relevant agencies. This approach aims to ensure that the progress towards sustainable development in education meets established goals and effectively responds to societal needs.

Additionally, Thailand has closely collaborated with international and regional education organizations to coordinate efforts in achieving Goal 4. These initiatives focus on enhancing educational quality and learning standards, promoting equitable and high-quality educational opportunities for all children, sharing educational knowledge and innovations within the region, and encouraging educational development and experience exchange among member countries. Such cooperation allows Thailand to implement internationally recognized approaches in education development and achieve sustainable educational goals effectively.

Recently, the Thai government has implemented several policies and measures to promote education in alignment with SDG 4. These include:

- 1) **15 Years of Free Education:** Under Article 54 of the 2017 Constitution of Thailand, the government is required to provide 12 years of quality education—from pre-school through compulsory education—without charging fees. Additionally, the state must support educational expenses for those who lack financial resources to ensure comprehensive care and development for all individuals. This policy aims to ensure that every child can access education without financial barriers and reinforces education as a fundamental right that should not be constrained by economic factors.

In the fiscal year 2024, the government allocated a budget to support basic education expenses under a program covering all levels from kindergarten to primary education, benefiting a total of 6,552,101 students. The allocation is distributed according to the educational levels, as detailed below (data as of June 10, 2023)

- 2) **Support for Educational Expenses:** The government has allocated a budget to cover essential educational expenses, such as teaching costs, textbooks, learning materials, school uniforms, and student development activities. This support aims to alleviate the financial burden on families and improve access to quality education for children from low-income families.
- 3) **Increased Per Capita Subsidies:** In response to the economic and social impacts of the COVID-19 pandemic, which affected various sectors including education, the Ministry of

Education proposed increasing per capita subsidies. The increases include a 20% rise in teaching costs, a 15% rise in learning materials, an additional uniform set for underprivileged children, and a 30% increase in student development activities. These adjustments are intended to enhance the coverage and quality of education.

- 4) **Increased Student Lunch Funding:** The government has raised the lunch funding based on school size to ensure all students receive adequate nutrition. Schools with varying numbers of students are allocated funds according to specific rates. For example, schools with 1-40 students receive 36 baht per student per day, schools with 41-100 students receive 27 baht per student per day, schools with 101-120 students receive 24 baht per student per day, and schools with more than 121 students receive 22 baht per student per day.
- 5) **"Thailand Zero Dropout" Policy:** Under the government's "Every Child Must Learn" initiative, the goal is to achieve zero dropout rates by integrating comprehensive data systems and creating a flexible learning system that caters to individual needs. This policy aims to provide pathways to better careers and break the cycle of poverty. The Ministry of Education, in collaboration with the Ministry of the Interior, promotes this policy through provincial education committees led by governors and provincial education officers.
- 6) **Educational Expense Relief:** During the COVID-19 pandemic, the Ministry of Education allocated a budget to provide 2,000 baht per person in financial assistance to parents, students, and learners. This support was extended to all types of educational institutions, both public and private, covering a total of 15 organizations and benefiting 9,816,966 students.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Thailand's Ministry of Education is dedicated to ensuring that all children have access to free, quality, and equitable primary and secondary education by 2030. To achieve this, the ministry is prioritizing **legal reforms**, **policy enhancements**, and **curriculum improvements** that address the diverse needs of students, promoting equal access regardless of socio-economic background. These efforts are guided by the **National Education Plan (2017-2036)**, which focuses on equity, expanding digital learning opportunities, and closing the educational gaps between urban and rural areas. The plan aligns with the goal of providing inclusive and quality education for all.

Key objectives include reducing disparities in school enrollment, improving standardized test scores (O-NET) across regions, expanding access to digital resources, and creating a data-linked system for managing education efficiently. Special attention is given to early childhood education and addressing declining upper-secondary graduation rates. The government has also increased per-student funding to reduce the financial burden on families, especially in the wake of the COVID-19 pandemic.

Among these efforts, the **"Bring the Children Back to School"** project aims to reduce dropouts by reintegrating marginalized students, including those from remote or disadvantaged backgrounds, into the education system. Another notable initiative is the **"Zero Dropout Project,"** designed to prevent at-risk students from leaving school prematurely. The project targets students facing

hardships like poverty or family issues and provides tailored support, such as financial aid, mentorship, and flexible learning options, to keep them engaged in education.

Through region-specific innovations in the Education Sandbox program, along with updated curricula focusing on critical 21st-century skills, the Ministry of Education continues to address educational inequities. The National Institute of Educational Testing Service (NIETS) plays a key role in improving education quality by assessing learning outcomes and advancing national testing methods. Together, these initiatives reinforce Thailand's broader strategy to ensure inclusive, high-quality education for all, aligning with the global SDG 4 target.

Other relevant general measures, including gender equality

- | | |
|--|---|
| ☒ Legislation provides for gender equality in education | ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☒ Re-entry programmes for young mothers are provided for |
| ☒ Gender-responsive education sector planning is undertaken | ☒ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☒ Providing positive or affirmative action measures | ☒ Curricula are rid of all stereotypes ²¹ and bias |
| ☒ Providing financial incentives and fellowships | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☒ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☒ Teachers are trained to combat stigmatisation ¹⁹ | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Thailand has made considerable progress in advancing gender equality, particularly within the education sector, through a combination of legal reforms, policies, and inclusive initiatives aimed at ensuring equal access and opportunities for all genders. The **Gender Equality Act of 2015** plays a pivotal role in safeguarding individuals from discrimination based on gender, ensuring that both men and women, as well as individuals of diverse gender identities, can equally participate in the educational system.

By ratifying the **Convention on the Elimination of All Forms of Discrimination against Women (CEDAW)**, Thailand has committed itself to reducing gender disparities, particularly

¹⁹ 'Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

in education. This commitment has led to an increase in the enrollment of girls across all education levels, with more women pursuing higher education and entering fields traditionally dominated by men, such as science, technology, engineering, and mathematics (STEM).

Additionally, Thailand's legal progress, exemplified by the **Same-Sex Marriage Act**, highlights the country's dedication to extending equal rights to individuals of all gender identities, including LGBTQ+ persons. This law not only addresses family rights but also creates a more inclusive atmosphere in educational institutions, allowing LGBTQ+ students to feel more accepted and supported in their academic endeavors.

Through these efforts, Thailand is fostering an education system that promotes gender equality, reducing disparities in leadership roles and ensuring that students of all genders can achieve their full potential. This dedication to inclusivity in education contributes to the development of a society that is both equitable and empowering for all its members.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Achieving gender equality in education in Thailand has faced challenges despite progress. While enrollment rates for girls in primary and secondary education are close to equal, gender disparities persist, particularly in STEM fields. Women are underrepresented in science, technology, engineering, and mathematics, partly due to societal stereotypes and gender roles.

Moreover, girls in rural and disadvantaged areas face higher dropout rates, influenced by poverty, family responsibilities, and transportation barriers. In response, Thailand has implemented initiatives such as revising curricula to promote gender equality and enacting the Gender Equality Act to safeguard equal educational opportunities.

However, gender bias continues in certain subjects and career paths. Ongoing efforts are needed to eliminate these biases through policy, teacher training, and societal change to ensure equal opportunities for all students, regardless of gender.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☒ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According to the **Thai Civil and Commercial Code**, marriage in Thailand under Thai Marriage and Family Laws is permitted only when both the man and woman have reached the age of seventeen. However, the court may grant permission for them to marry before reaching this age if there is an appropriate reason, such as cultural or family circumstances. This legal framework is in place to protect minors while allowing flexibility in exceptional cases, with court oversight ensuring that early marriages occur under justifiable conditions.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☒ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁵ and bias |
| ☒ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Thailand is a multicultural society composed of diverse indigenous tribes and ethnic groups, each with its own unique culture, beliefs, traditions, and languages passed down through generations. These groups possess distinct cultural and linguistic identities. Providing inclusive and appropriate education for these minorities is crucial for promoting equity and fostering social development. Ensuring that educational programs respect and incorporate the unique cultural and linguistic characteristics of these groups helps to build fairness and enhance societal progress.

The Learning Encouragement Act B.E. 2566 underscores Thailand's commitment to inclusive education. Section 6, paragraph 3, mandates that education providers consider the diversity and needs of all learners, ensuring equitable access to education for people of all genders,

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

ages, and backgrounds. This legislation supports a non-discriminatory, inclusive educational environment for everyone, regardless of their cultural or ethnic background.

In line with this, Thailand's National Education Act of 1999 guarantees free and compulsory education for all children, including stateless individuals, at the primary and secondary levels. This law ensures that even children without formal nationality documents can attend public schools, thus promoting equal educational opportunities for all.

In Thailand, students without a civil registration or Thai nationality are still entitled to education under the regulations of the Ministry of Education. According to the **Regulation on the Admission of Students (B.E. 2548)**, Section 6, schools must follow a step-by-step process to accept such students:

1. **Birth Certificate:** If available, a birth certificate is required for registration.
2. **Alternate Documentation:** If no birth certificate is available, schools can accept other documents, such as a letter of birth confirmation, national ID cards, house registration certificates, or any similar government-issued documents.
3. **Government-Issued Documents:** In cases where the previous documents are not available, authorities may accept government-issued documents like a record of a stateless individual or a certificate for non-registered persons (e.g., a family registration document).
4. **Parental or Guardian Declaration:** If none of the above documents are available, parents or guardians can provide a written declaration of the child's history, which will be used for educational records.
5. **Interview and Documentation:** In extreme cases, schools may directly interview the child or their family to gather relevant information to create educational records.

This inclusive approach aligns with Thailand's broader commitment to international conventions like the *Convention on the Rights of the Child*, which advocates for the right to education for all children. Through these efforts, Thailand is striving to ensure that all children, regardless of ethnicity, nationality, or legal status, have access to quality education.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

The challenges in managing education for minority groups in Thailand include:

1. **Cultural and Linguistic Barriers:** Many minority groups speak languages other than Thai, which creates difficulties in understanding the curriculum, as Thai is the main language of instruction.
2. **Geographic and Economic Challenges:** Minority communities, often in remote areas, face long distances to schools and lack financial resources, which can affect school attendance and lead to higher dropout rates.

3. Legal and Documentation Issues: Stateless children, who are common among minority groups, often lack documentation, which can restrict their access to education despite legal frameworks supporting their right to attend school.

4. Resource Limitations: Schools in rural and border regions may not have the necessary educational resources or qualified teachers to meet the needs of minority students.

These barriers require continued efforts from the government, NGOs, and local communities to provide more inclusive and accessible education.

Indigenous people:

- | | |
|--|---|
| ☒ Legislation provides for the right to education of indigenous people | ☒ Financial incentives and fellowships are provided for indigenous people |
| ☒ Policy measures aim to enhance the right to education of indigenous people | ☒ Teachers are trained on intercultural education |
| ☒ Policy elaboration includes consultations with local communities | ☒ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☒ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☒ Native language instruction is ensured |
| ☒ Positive or affirmative action measures are provided for indigenous people | ☒ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| | ☒ Curricula are rid of all stereotypes ²⁷ and bias |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Thailand has made significant progress in ensuring the rights of indigenous and ethnic minorities, particularly in education. The Thai Constitution and the Learning Encouragement Act B.E. 2566 both uphold the principle of non-discrimination, ensuring that individuals from all backgrounds, including indigenous peoples, have equal access to quality education. The Learning Encouragement Act specifically mandates that educational providers recognize the diversity of learners and cater to their unique needs, offering equitable opportunities to all.

In addition, the government is increasingly recognizing the importance of culturally inclusive education. Efforts to integrate the languages, traditions, and knowledge of indigenous communities into the educational system are progressing, helping preserve cultural diversity while promoting social inclusion. There are also several initiatives that focus on making

²⁶ Supra note 15.

²⁷ Supra note 16.

education accessible in remote areas, where indigenous populations are often located, through community-based schools and local educational support systems.

The use of mother tongue serves as a crucial foundation for the development of Thai, the official language, and further links to foreign language learning. This approach aligns with the natural process of language acquisition in humans, ensuring a smoother learning experience. At the same time, it emphasizes the importance of local languages and languages for disadvantaged groups, ensuring that no one is excluded from quality education while promoting linguistic diversity and inclusion.

NGOs and international organizations have also played a key role in enhancing educational opportunities for indigenous children by providing scholarships, educational resources, and training for teachers in culturally sensitive practices. These collective efforts contribute to a more inclusive and equitable education system, in line with Thailand's commitment to respecting the rights and preserving the culture of indigenous communities.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

The challenges to realizing the right to education for indigenous people in Thailand are multifaceted. These include:

1. **Language Barriers:** Indigenous languages are often not included in the curriculum, which hinders learning for students who speak these languages as their first language.
2. **Geographic and Economic Challenges:** Indigenous communities are often located in remote areas, making it difficult for children to access schools. Limited financial resources also hinder families from supporting their children's education.
3. **Cultural Barriers:** The mainstream education system sometimes does not accommodate indigenous ways of life, leading to disengagement and underrepresentation.
4. **Statelessness and Legal Issues:** Indigenous children, particularly in border areas, may lack the necessary documentation to attend school, limiting their access to education.

Although Thailand has enacted laws like the National Education Act and the Learning Encouragement Act to promote education for indigenous people, challenges remain in implementing these policies effectively, particularly in remote areas

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |

- ☒ Inclusion in mainstream schools is ensured
 - ☐ Positive or affirmative action measures are provided for
 - ☐ All administrative barriers to access education are removed
 - ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for
 - ☒ Teachers are specifically trained to ensure their inclusion
 - ☒ Teachers are trained to combat stigmatisation³⁰
 - ☐ Other:
- ☒ Multiple and flexible learning pathways³¹ are provided
 - ☒ Curricula are rid of all stereotypes³² and bias
 - ☐ Accelerated learning programmes are provided
 - ☒ Non-formal and/or alternative education programmes are provided
 - ☒ Language classes to newcomers are provided for
 - ☒ Multilingualism and intercultural education are encouraged

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Thailand has developed a legal framework to support and promote the rights of **stateless children**, focusing on access to education, healthcare, and legal status. Key elements of this framework include:

1. **Civil Registration Act (2008)**: This law mandates the registration of all children born in Thailand, regardless of their parents' nationality or legal status. Stateless children can be issued birth certificates, which are crucial for securing basic rights and services.
2. **The Nationality Act (amended in 2008)** provides pathways for stateless individuals, including children, to apply for Thai nationality under certain conditions, particularly if they were born in Thailand or have lived in the country for an extended period.
3. **Cabinet Resolutions**: Various government resolutions have expanded the rights of stateless children, including their right to access free education, public healthcare, and social services, regardless of their legal status. The 2005 Cabinet Resolution allows stateless and undocumented children to enroll in schools.
4. **The 2017 Constitution**: Thailand's constitution guarantees basic human rights, including the right to education, healthcare, and protection from discrimination, applying to all individuals in Thailand, including stateless children.

These legal measures aim to ensure that stateless children have access to fundamental rights, helping them integrate into society while addressing their vulnerabilities.

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

Thailand does face climate displacement, though individuals displaced by climate change are not officially recognized as "climate refugees" under international legal frameworks like the 1951 Refugee Convention. Environmental impacts such as flooding, droughts, and rising sea levels have contributed to increased internal migration and cross-border displacement. Migrants from neighboring countries like Myanmar, Cambodia, and Laos have been particularly affected, as disruptions to agriculture caused by droughts and other climate-related challenges in their home countries force them to seek work opportunities in Thailand's industries.

In some cases, these migrants are employed in agriculture and construction, sectors that are themselves vulnerable to climate risks. While there is no formal recognition of climate-induced displacement under Thai law, climate change continues to drive migration patterns across the region.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

In Thailand, the right to education for migrants, refugees, asylum seekers, stateless persons, and internally displaced persons (IDPs) is supported by the National Education Act, which guarantees access to education for all children regardless of nationality or legal status.

Thailand emphasizes education and strives to provide educational opportunities to all individuals living within its borders. According to the Constitution and relevant laws, education is a fundamental right for everyone, regardless of their nationality or legal status. This means that all people residing in Thailand, including stateless individuals and indigenous groups, should have access to education.

However, in practice, some groups, such as indigenous peoples or those without Thai citizenship, may face challenges in fully accessing education. These challenges may arise due to documentation issues, distance, economic difficulties, or a lack of understanding of the educational system.

In recent years, the Thai government and non-governmental organizations (NGOs) have made efforts to improve access to education for these groups. This includes initiatives such as providing education to stateless children and creating curricula that reflect the culture and language of indigenous peoples.

People with disabilities:

☒ Legislation provides for their right to education

☒ Mainstream teachers are specifically trained on disabilities

☒ Policy measures aim to enhance their right to education

- | | |
|---|---|
| ☒ Inclusion in mainstream schools is ensured | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Auxiliary assistance is provided |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Financial incentives and fellowships are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☐ Other | ☒ Education infrastructure and learning materials are adapted |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The 2008 Education Act for Persons with Disabilities in Thailand guarantees the right to education for individuals with disabilities. It mandates inclusive education, requiring schools to provide appropriate accommodations and support for students with disabilities. The Act emphasizes access to education from early childhood to higher education, promotes inclusive teaching practices, and ensures that specialized services and resources are available. It aligns with international commitments, such as the UN Convention on the Rights of Persons with Disabilities. Although challenges remain in implementation, the Act marks a key step toward equality and inclusivity in education for all students in Thailand.

The Ministry of Education in Thailand has policies to support inclusive education for students with disabilities, ensuring that every school is equipped with appropriate facilities and tools to accommodate their needs. These facilities may include ramps for wheelchairs, accessible stairways, specially designed restrooms, as well as educational tools such as Braille books, screen readers, or hearing aids, allowing students with disabilities to fully access their learning.

Additionally, some schools have special education teachers who are trained to provide support tailored to the needs of individual students with disabilities. However, in some remote areas or schools, challenges may still exist in providing comprehensive resources and equipment.

The Ministry of Education continues to work on improving the educational system for students with disabilities, collaborating with various organizations to ensure that adequate resources and support are available to make education more inclusive and equitable.

Also, Thailand has policies and laws that support the employment of persons with disabilities in both the public and private sectors. One key piece of legislation is the **Persons with Disabilities Empowerment Act, B.E. 2550 (2007)**, which mandates that organizations, both public and private, provide job opportunities for persons with disabilities in proportion to their total workforce.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

³³ Supra note 15.

³⁴ Supra note 16.

Despite the 2008 Education Act for Persons with Disabilities, challenges remain, such as:

1. **Limited infrastructure:** Many schools lack resources and facilities to fully accommodate students with disabilities.
2. **Social stigma:** Negative attitudes toward disabilities often prevent full participation and enrollment in schools.
3. **Lack of trained educators:** Teachers may not have the necessary skills to teach students with disabilities effectively.
4. **Geographical disparities:** Access to inclusive education is limited in rural areas due to resource shortages.

These barriers highlight the need for further efforts to ensure full inclusion in education.

Students from poor households:

- ☒ Financial incentives and fellowships for school enrolment are provided
 - ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education
 - ☒ Positive or affirmative action measures are provided
 - ☐ Other:
- ☒ Teachers are trained to combat stigmatisation³⁵
 - ☒ Curricula are rid of all stereotypes³⁶ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Thailand has continuously implemented policies to address poverty and social inequality, particularly within the framework of national strategies aimed at creating economic and social opportunities and equality. Policies encompass improvements in the education system, public health development, and state welfare programs, with the goal of reducing disparities and enhancing fairness in society. These measures aim to ensure that all segments of the population have access to necessary resources and services, thereby improving their quality of life.

The Education Equality Fund (EEF), established by the Education Equality Fund Act of 2018, is a key initiative aimed at addressing educational inequalities in Thailand. It provides financial assistance to children and youth facing significant barriers to education, especially those from low-income families, rural areas, or marginalized groups. The fund seeks to level the playing field by improving access to quality education for all students, regardless of background.

The EEF also emphasizes collaboration between government bodies, local communities, and private organizations to ensure more efficient resource distribution and better-targeted support. Additionally, the fund supports research and programs designed to enhance teacher quality, ensuring that educators are equipped to meet the diverse needs of their students.

³⁵ Supra note 15.

³⁶ Supra note 16.

Ultimately, the EEF plays a crucial role in reducing educational disparities and promoting inclusive education across the country.

Thailand has a policy of providing student loans through the **Student Loan Fund (SLF)**, which is designed to assist students who lack financial resources to pursue higher education. The fund offers loans that can be used for tuition fees, textbooks, and other education-related expenses.

The **SLF** is specifically aimed at helping students from low-income backgrounds, and the loan repayment begins after graduation, with low-interest rates. The repayment terms are flexible, and the loans are intended to be accessible to students pursuing education in fields that are crucial for the country's development, such as science and technology.

In addition to the **SLF**, there is also the **Income-Contingent Loan Program (ICLP)**, which is another type of loan scheme that allows graduates to begin repaying their loans only when their income reaches a specified level. This program helps ensure that students who might otherwise be unable to afford education have the opportunity to study and later repay their loans based on their future earning potential.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

In Thailand, providing education for poor people, especially in rural or disadvantaged areas, faces several key challenges:

1. **Financial Barriers:** While education is officially free, many families still face indirect costs such as transportation, uniforms, and learning materials. Poor families often struggle to afford these, which results in lower school attendance and higher dropout rates.
2. **Geographical Isolation:** Many poor families live in remote areas where schools are far away, making regular attendance difficult. Rural schools are also often under-resourced, with limited infrastructure, teachers, and educational materials.
3. **Economic Pressures:** Children in poor families are often needed to work to support their families, leading to high dropout rates. When parents face financial hardships, they may prioritize work over education, especially at the secondary or tertiary levels.
4. **Teacher Shortages:** Poor and rural areas often face a shortage of qualified teachers. Inadequate compensation and lack of professional development opportunities can deter educators from working in these areas, leading to lower quality education.
5. **Cultural and Social Barriers:** In some cases, cultural beliefs and practices may limit the opportunities for girls or children from marginalized communities to access education. Social barriers like gender norms or ethnic identity issues can prevent equal access.
6. **Health and Nutrition:** Poor nutrition and inadequate healthcare in impoverished regions can affect children's ability to focus in school and attend regularly, impacting their academic performance.

To address these challenges, Thailand has implemented various programs such as the **Education Equality Fund** and other initiatives targeting vulnerable groups. However, significant effort is still

needed to ensure that all children, regardless of their socio-economic background, have the opportunity to complete their education.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|--|
| ☒ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, |
| ☒ Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care, |
| ☒ ECCE services are accessible on a non-discriminatory basis | nutrition, health, safety, protection, and play. |

- Please elaborate further on the measures taken:

The Thai Constitution guarantees free education, including pre-primary education. According to **Section 54** of the Constitution of Thailand (2017), the government is committed to providing free education at least up to the level of **basic education**, which includes **pre-primary education**. This is part of Thailand's broader efforts to ensure equal access to education for all children, regardless of socio-economic status.

The commitment to **free education** for children includes **kindergarten education** (pre-primary level) under the **National Education Act of 1999** and its amendments. This law ensures that children from 3 to 5 years old are entitled to free access to early childhood education, a key component in fostering equitable education opportunities from an early age.

The government's focus on early childhood education aims to provide all children with the foundational skills and opportunities necessary to succeed academically and socially, aligning with Thailand's development goals for education.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

In Thailand, **pre-primary education** refers to early childhood education before compulsory primary schooling. This includes **nursery** and **kindergarten** levels, designed for children aged **3 to 5 years old**. The objective is to prepare children for primary school by fostering cognitive, social, and emotional development. The duration can vary: **2 to 3 years** of kindergarten, or sometimes a year of **early childhood education** for younger children.

The Ministry of Education ensures that children are ready to enter Grade 1 with foundational learning skills. The goal of this stage is not just academic readiness, but also to help children develop essential life skills, social abilities, and adaptability.

The system aligns with the broader national commitment to **universal access to early childhood education** and lays a foundation for lifelong learning. It's structured to be inclusive, addressing the diverse needs of children across the country.

- ☒ Pre-primary education is **not** compulsory.

- ☒ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

In Thailand, pre-primary education is not compulsory, but it is provided free of charge through public education systems. This includes **pre-primary units** and **childhood development centers** within public schools, which are overseen by the **Ministry of Education**. Additionally, **childhood learning centers** operated by local governments or municipalities under the supervision of the **Ministry of the Interior** also provide free access to early childhood education. These efforts align with the country's commitment to universal access to early childhood education, helping ensure that all children have the opportunity to receive foundational learning before starting formal primary education.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☒ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☒ Lack of support to families |
| ☐ Other: | |

Early childhood education in daycare centers in Thailand faces several challenges, particularly concerning the quality of education and child care, which impacts the physical, emotional, and intellectual development of children in this age group. These challenges can be divided into several areas as follows:

1. **Lack of qualified personnel:** Having teachers and caregivers with the necessary knowledge and skills to educate and care for young children is crucial. However, in some areas, especially in rural or remote locations, there is a shortage of trained personnel who specialize in early childhood development and care.
2. **Insufficient resources and facilities:** Many daycare centers lack appropriate educational tools and resources, as well as facilities that support the development of children in early childhood. This includes age-appropriate learning materials, adequate classroom space, or equipment that promotes experiential learning.
3. **Inequitable access to education:** Children in rural or remote areas often face challenges in accessing quality daycare centers, and sometimes parents are unable to afford the cost of sending their children to centers with higher standards.
4. **Lack of development of appropriate curricula:** The curriculum in some daycare centers may not align with the developmental needs of children or may be outdated. Some centers still use curricula that are not modern or fail to account for the cultural diversity of the children.
5. **Lack of assessment and monitoring of quality:** The assessment and monitoring of the quality of daycare centers in some areas may not be rigorous enough, and there may be a lack of clear systems for tracking results, making it difficult to improve standards.

- Please elaborate. Brief quantitative information may be added.

Thailand has made significant progress in managing and developing early childhood education, especially since 2008. The focus of early childhood education has been on promoting collaboration between parents and communities in child development, emphasizing several key areas including the promotion of good health, appropriate discipline, and overall development in physical, mental, and emotional aspects. In addition, there has been a focus on developing systematic analytical thinking skills and enactive practices that align with brain learning processes, as well as creating environments in educational institutions that reflect positive behaviors and lifestyles. These advancements have resulted from strong cooperation among various agencies, both public and private, which have worked together to develop comprehensive and systematic policies and strategies. One notable advancement is the establishment of national standards for early childhood development centers, which clearly define operational standards and quality to ensure adherence to the set standards.

Furthermore, a plan for early childhood development (2021-2027) has been established, which sets policies and strategies that align the work of all relevant ministries and agencies to reduce duplication and create consistency in operations. These policies aim to respond to the constitution and sustainable development guidelines.

Early childhood development is also supported by the creation of a central database for early childhood, which helps in tracking and evaluating the performance of early childhood development centers efficiently. The central database allows for the collection of important information about child development and the operations of educational institutions, as well as the evaluation of performance to continuously improve and develop the quality of pre-primary education management

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

7 to 12 Years

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Thai government has implemented several policies and measures to promote education in alignment with SDG 4. These include:

- 1) 15 Years of Free Education:** Under Article 54 of the 2017 Constitution of Thailand, the government is required to provide 12 years of quality education—from pre-school through compulsory education—without charging fees. Additionally, the state must support educational expenses for those who lack financial resources to ensure comprehensive care and development for all individuals. This policy aims to ensure that every child can access education without financial barriers and reinforces education as a fundamental right that should not be constrained by economic factors.
- 2) Support for Educational Expenses:** The government has allocated a budget to cover essential educational expenses, such as teaching costs, textbooks, learning materials, school uniforms, and student development activities. This support aims to alleviate the

financial burden on families and improve access to quality education for children from low-income families.

- 3) **Increased Student Lunch Funding:** The government has raised the lunch funding based on school size to ensure all students receive adequate nutrition. Schools with varying numbers of students are allocated funds according to specific rates. For example, schools with 1-40 students receive 36 baht per student per day, schools with 41-100 students receive 27 baht per student per day, schools with 101-120 students receive 24 baht per student per day, and schools with more than 121 students receive 22 baht per student per day.
- 4) **“Thailand Zero Dropout” Policy:** Under the government’s “Every Child Must Learn” initiative, the goal is to achieve zero dropout rates by integrating comprehensive data systems and creating a flexible learning system that caters to individual needs. This policy aims to provide pathways to better careers and break the cycle of poverty. The Ministry of Education, in collaboration with the Ministry of the Interior, promotes this policy through provincial education committees led by governors and provincial education officers.
- 5) Thailand has fully committed to enhancing educational quality through the **“Joining Hands and Move Forward Together”** approach, which centers on students with the concept of **“Happy Learning”**. This approach aims to reduce educational disparities and continuously improve education quality by updating curricula and learning processes to match global changes. The curriculum is designed to cater to students' interests and needs, supporting income generation during studies and employment after graduation, aligning with labor market demands.

- What challenges were encountered in realizing primary education?

- | | |
|---|---|
| ☐ Limited access | ☒ Poor learning outcomes in foundation literacy |
| ☐ Issues of equity and inclusion | ☒ Poor learning outcomes in numeracy |
| ☐ High dropout rates | ☐ Poor learning outcomes in social and emotional learning |
| ☐ Poor quality programmes | ☒ Other poor learning outcomes |
| ☐ Other: | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

The access to quality education in primary schools faces a variety of challenges that affect children globally. These challenges often hinder the ability of young learners to reach their full potential. Below are some of the key issues:

1. **Inequitable Access to Education:** Many children, especially in rural or conflict-affected regions, lack access to quality education due to geographic, economic, or social barriers.

Children from marginalized groups, such as those with disabilities, ethnic minorities, or those living in poverty, are often excluded from quality educational opportunities.

2. **Inadequate Infrastructure and Resources:** In some remote areas, primary schools suffer from inadequate infrastructure, including overcrowded classrooms, lack of basic facilities like sanitation, and insufficient learning materials. This hampers the ability of teachers to deliver effective lessons and creates an environment that is not conducive to learning.
3. **Teacher Shortages and Inadequate Training:** There is often a shortage of qualified teachers, particularly in rural or underserved areas. In addition, teachers may not receive adequate training or professional development, which affects their ability to teach effectively, especially in diverse classrooms with varying student needs.
4. **Low Educational Funding:** Many countries allocate insufficient funds to education, resulting in under-resourced schools, outdated teaching materials, and poor infrastructure. This lack of investment limits the quality of education that children receive, particularly in lower-income countries or regions.
5. **Cultural and Gender Barriers:** In some societies, cultural norms or gender biases may discourage girls or other marginalized groups from attending school. In some regions, child marriage, early pregnancy, or cultural expectations may prevent children, especially girls, from completing their education.
6. **Language and Curriculum Gaps:** Children who do not speak the language of instruction or who come from different cultural backgrounds may struggle with the curriculum. In many areas, the curriculum may not be adapted to the needs of diverse learners, limiting its effectiveness in fostering learning.
7. **Health and Nutrition Issues:** Malnutrition, illness, and poor health can significantly impact children's ability to concentrate and learn. In some regions, a lack of access to basic health care and nutritious food leads to absenteeism, delayed development, and poorer educational outcomes.

Addressing these challenges requires comprehensive policies, increased investment in education, and a global commitment to ensuring that every child has access to the quality education they deserve.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

13-15 Years

- Please provide the age of enrolment and duration of upper secondary education:

16-18 Years

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☒ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Thailand's educational policies, as outlined in the following initiatives, reflect a commitment to improving both the quality and accessibility of education while addressing current and future challenges:

1. **Anywhere Anytime Learning Policy:** This policy aims to reduce educational disparities by providing free education through a platform that allows learning at any time and place. The "one student, one tablet" initiative encourages private sector involvement in education, offering compensation during learning or vocational training. It integrates traditional classroom teaching with online learning via hybrid education, facilitating greater access to education. Additionally, the policy introduces a Credit Bank System to extend learning opportunities to people of all ages, enabling simultaneous education and work.
2. **One District, One Quality School Project:** The goal of this project is to establish at least one model quality school in each district or educational area to pilot the enhancement of educational standards. This includes improvements in infrastructure, media, equipment, and the overall learning environment, with continuous annual funding to ensure long-term sustainability.
3. **Career Guidance and Life Goal Setting:** This initiative updates curricula to align with global changes and focuses on developing essential life skills that meet students' interests and needs. The aim is to provide opportunities for students to earn income while studying and to secure employment after graduation, based on labor market demands. A comprehensive career guidance system will be established from early childhood to secondary education, helping students discover their educational paths and life goals and make adjustments as needed throughout their educational journey.
4. **Certification and Professional Standards (Skill Certificate):** This measure provides opportunities for students to earn additional certificates for their careers by using accumulated credits for qualification equivalency and professional certification. It supports vocational education students in obtaining professional certifications while still in the educational system, enabling them to generate income during their studies and work simultaneously.

5. **Developing Education Level Equivalency and Assessment Systems:** This initiative creates systems for recognizing or transferring academic results, skills, knowledge, experience, or competencies from various institutions, including comparisons with international education systems. This will help students with exceptional abilities avoid repeating courses and make efficient use of their accumulated learning for entry into or certification by different institutions or systems.

6. **Creating Earning Opportunities During Study and Employment Post-Graduation (Learn to Earn):** This policy focuses on developing vocational education at a professional level to enhance the skills of the technical workforce. It emphasizes training in fields that align with labor market demands, national economic and social development plans, and education strategies. Practical learning will be prioritized to ensure that vocational graduates are prepared for desired careers and can successfully integrate into society.

These policies reflect Thailand's dedication to providing high-quality and equitable education, which is not only crucial for domestic development but also contributes to achieving the global Sustainable Development Goals. The emphasis on lifelong learning, career preparation, and workforce alignment is key to the country's future economic and social growth.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The **Labour Protection Act B.E. 2541 (Amended)**, Sections 44 and 45, set out the following regulations regarding child and young workers:

1. **Section 44:** Employers are prohibited from employing children under the age of **15** to protect their right to education and prevent child labor.
2. **Section 45:** Employers hiring young workers under the age of **18** must:
 - Notify a **Labour Inspector** within **15 days** of employment.
 - Maintain a record of employment conditions and make it available for inspection.
 - Notify the Labour Inspector within **7 days** if the young worker's employment is terminated.

These measures ensure the protection of young workers from exploitation and unsafe working conditions.

- What challenges were encountered in realizing secondary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☒ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

The **low number of professionally trained teachers** in Thai secondary education is a significant challenge affecting the **quality of education**. A shortage of qualified educators leads to lower student performance, increased inequality, and teacher burnout. This impacts students' academic outcomes, especially in underserved areas, and can have long-term societal consequences, such as limiting economic development.

To address this issue, solutions include:

- **Improving teacher training** programs.
- **Attracting and retaining qualified teachers** through better salaries and support.
- **Ongoing professional development** for teachers.
- **Collaborating with international institutions** to enhance teaching standards.

Enhancing teacher quality is crucial to improving education and ensuring future success.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked):

- | |
|---|
| ☐ Higher education is free of charge |
| ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience) |
| ☒ Higher education is accessible through financial incentives and scholarships |
| ☒ Higher education is accessible through positive or affirmative action measures |

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- ☐ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Thailand has been dedicated to ensuring that all citizens have access to quality education at all levels, including vocational and higher education, with a focus on developing comprehensive policies and measures to meet the needs of the current job market and evolving work environment. In vocational education, curricula have been updated to emphasize practical training, the use of new technologies, and skills development. This includes adopting innovative learning methods and problem-based approaches to foster creativity and effectiveness in students. For higher education, Thailand has made strides in aligning its educational standards with international benchmarks, updating curricula to emphasize fields like Science, Technology, Engineering, and Mathematics (STEM), and boosting research and innovation to drive economic growth. Additionally, the development of online learning platforms supports lifelong education, providing ongoing opportunities for professional development and addressing labor market demands. Overall, these efforts aim to create a robust and sustainable educational system that ensures Thailand's competitiveness on a global scale.

In Thailand, vocational education management emphasizes hands-on experience aligned with technological advancements and practical application in real life. This field is continuously evolving to keep pace with regional and global changes, focusing on the development of specialized academic and vocational skills. The approach involves intensive training in knowledge tailored to individual interests and aptitudes, fostering human development through problem-based or project-based learning both in educational institutions and workplaces. The aim is to cultivate critical thinking, ethical values, and high standards of professional conduct, alongside leadership skills. Thus, the development of vocational education in Thailand is geared towards equipping learners with 21st-century skills, ensuring promising futures, and enhancing employability.

However, Thailand faces a mismatch between education levels and labour market needs. Despite a high production rate of bachelor's degree graduates, the labour market demands more vocationally trained workers. The shortage of skilled professionals in specific vocational fields fails to meet the needs of the job market effectively. Additionally, the production of graduates capable of developing innovations through STEM education (Science, Technology, Engineering, and Mathematics) remains insufficient, leading to an inability to satisfy the demand in sectors such as industry, agriculture, and services.

The production of labour in Thailand reveals that the skills of workers often do not align with employers' expectations. Although the dual vocational education system, which combines practical training in workplaces with theoretical learning, enhances career competencies and increases job opportunities for students, the number of students choosing vocational

education remains lower compared to those pursuing general education at the upper secondary level.

Thailand has taken steps to address the aforementioned issues by implementing the following measures:

1. **Development of Competency-Based Curriculum:** The curriculum has been revised to emphasize intensive skills training combined with hands-on experience in workplaces. This approach aims to better prepare graduates for employment.
2. **Enhancement of Teacher Competencies:** Efforts have been made to upgrade teachers' knowledge and skills to keep pace with technological advancements in various vocational fields. This includes improving their ability to teach both in the classroom and through practical training in workplaces. Additionally, creating professional development opportunities for teachers and building a network of vocational educators are intended to enhance teaching effectiveness and better prepare students.
3. **Enhancement of Institutional Readiness:** Efforts have been made to modernize and adequately equip training tools and facilities. This includes the development of simulation systems to provide pre-training or pre-vocational experience. Additionally, there is a focus on fostering positive awareness and attitudes towards vocational education to emphasize the importance of this level of education

Moreover, the Ministry of Higher Education, Science, Research, and Innovation has developed the Higher Education Development Plan (2021-2027) to enhance the capabilities of Thai people and align with UNESCO's Education for Sustainable Development (ESD) framework. This includes creating the Thai MOOC platform to support lifelong learning and increase access to free online education. Additionally, significant projects such as the Higher Education Sandbox have been launched to develop educational programs that address the urgent needs of the country without being constrained by traditional curriculum standards.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☒ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Lifelong learning in Thailand is a central component of the country's education and development policies, aimed at fostering continuous personal, social, and professional growth throughout an individual's life. This approach aligns with global trends that emphasize the need for individuals to continuously adapt to a rapidly changing world. Thailand has made significant efforts to integrate lifelong learning into its national framework, focusing on accessibility, inclusivity, and adaptability to various learners' needs.

Presently, Thailand promotes and supports lifelong learning through the Department of Learning Encouragement, Ministry of Education which is authorized by the Learning Encouragement Act B.E. 2566 (2023) in Section 6 (3rd paragraph) mandates providers shall consider the diversity, and the needs of learners, as well as provide opportunities for people of all genders and ages to learn and access all learning resources with coverage, equality, and equity without discrimination. Here are some key aspects of lifelong learning in Thailand:

1. **Education for All Ages:** Thailand's education system emphasizes that learning should not be confined to childhood or adolescence but should continue throughout an individual's life. The **Ministry of Education** promotes learning for people of all ages,

from early childhood to adulthood. The government encourages institutions to provide educational programs and opportunities that are accessible to the elderly, workers, and other groups who may not have access to formal education systems.

2. Anywhere Anytime Learning: The **Anywhere Anytime Learning Policy** is part of Thailand's efforts to make education accessible at any stage of life. The policy provides digital platforms and tools, such as online courses and mobile learning applications, to enable individuals to learn whenever and wherever they choose. This initiative is designed to bridge the gap between formal education and continuous learning opportunities, especially for working adults or those in remote areas.

3. Vocational and Technical Education: Lifelong learning is closely linked to vocational and technical education in Thailand. The country has focused on improving its vocational education and training systems to help individuals develop new skills or enhance existing ones, particularly in fields that align with the national economic and labor market demands. Programs such as those offered by **Thailand's Vocational Education Commission** aim to create pathways for lifelong learning through certifications and skills training.

4. Learning Centers and Community Programs: Thailand has established various learning centers, both within urban and rural communities, that cater to lifelong learners. These centers provide opportunities for adults to develop skills, learn new technologies, and improve literacy. Such centers are often linked to local development programs that promote self-sufficiency and community resilience.

5. Credit Bank System: The **Credit Bank System** allows learners to accumulate credits through various learning experiences, whether formal or informal. This system provides flexibility for people to earn qualifications that reflect their learning achievements, which they can use to pursue further education or career opportunities. This system encourages individuals to engage in learning at different stages of their lives and contributes to lifelong education goals.

6. Government Policies and Initiatives: The Thai government has made lifelong learning a priority by integrating it into various national strategies. The **National Education Act** and the **Thailand 4.0 policy** stress the importance of continuous education to meet the demands of a knowledge-based economy. These policies support not only formal education but also non-formal education and informal learning, which are integral parts of lifelong learning.

7. Digital Literacy and Technology Integration: To further support lifelong learning, Thailand has incorporated digital literacy into its educational framework. The use of technology in learning has been encouraged to reach a broader audience, especially in remote or underserved areas. This includes the promotion of online learning platforms, digital tools, and the development of digital skills that are crucial in the modern workforce.

8. International Cooperation: Thailand also collaborates with international organizations and other countries to enhance lifelong learning opportunities. By participating in global education frameworks, such as **UNESCO**, Thailand ensures that its lifelong learning policies align with international best practices and standards.

Lifelong learning in Thailand is seen as an essential driver for national development. It is not only about improving individual skills and knowledge but also about strengthening

the economy and society by creating an adaptable and skilled workforce. As the country continues to modernize and address challenges such as economic inequality, technological changes, and an aging population, lifelong learning will play a key role in ensuring that all citizens can benefit from education and contribute to the country's growth.

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☒ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☒ Other: | |

Thailand faces several challenges in promoting lifelong learning, including unequal access to education, particularly for those in remote or low-income areas, and a curriculum that is often misaligned with the evolving needs of the labour market.

There is also a digital skills gap, especially among older adults and rural populations, which hinders access to online learning platforms. The lack of standardized recognition or certification for informal and non-formal learning further limits opportunities for individuals to showcase their acquired skills. Employers' limited support for continuous learning and fragmented policy coordination also contribute to the issue.

To overcome these challenges, Thailand needs to invest in infrastructure, update curricula, improve access to digital resources, enhance recognition of non-formal learning, and foster a broader societal shift towards valuing lifelong learning as essential for personal and professional growth.

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

Yes, **Thailand's legal and regulatory framework** outlines the conditions and minimum education standards for the establishment and functioning of public education institutions. The key laws and regulations that govern the education system in Thailand include:

1. The National Education Act B.E. 2542 (1999) (and its amendments)

- **Establishment of Public Education Institutions:** The National Education Act provides a legal basis for the establishment and operation of public education institutions in Thailand. It sets guidelines for the formation of both formal and non-formal education institutions and ensures that all schools follow a national curriculum and educational standards.
- **Minimum Education Standards:** The Act mandates that public educational institutions must meet certain minimum standards in terms of infrastructure, curriculum, teacher qualifications, and teaching methods. These standards aim to ensure that all students, regardless of their location or socio-economic status, have access to quality education.

2. The Education Act on Teacher Qualifications B.E. 2546 (2003)

- **Teacher Qualifications:** This Act regulates the minimum qualifications and standards required for teachers in public schools. It specifies the necessary education and professional development for teachers to ensure that they are equipped to deliver high-quality education.
- **Teacher Registration and Certification:** Teachers must be registered and certified by the appropriate authorities to work in public educational institutions, ensuring they meet the minimum standards of teaching competence.

3. The Ministry of Education (MOE) Regulations and Guidelines

- **Curriculum and Standards:** The Ministry of Education sets the **national curriculum** and **learning standards** for all public education institutions in Thailand. This includes specifying subjects, grade levels, and educational objectives to ensure uniformity in the quality of education across the country.

- **School Inspections and Quality Assurance:** The Ministry also oversees school inspections and the implementation of quality assurance mechanisms through agencies such as the **Office for National Education Standards and Quality Assessment (ONESQA)**. Schools must regularly assess and report their performance based on national standards.

4. The Private Education Act B.E. 2550 (2007)

While this Act primarily governs private educational institutions, it also sets minimum standards that ensure private schools align with national education goals. This ensures consistency across the entire education system, including the public sector, as private schools are also required to meet certain standards set by the Ministry of Education.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☒ Inadequate parental support to education |
| ☐ Cost of education | ☒ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Thailand has prioritized the development of its education system by implementing policies and allocating a significant budget to the Ministry of Education. For fiscal year 2024, the government has designated **328,384,658,100 baht** (or **10.2%** of the total budget) for education. Despite these efforts, the quality of education in Thailand remains below international standards. According to the **International Institute for Management Development (IMD)**, Thailand ranks **30th out of 64 countries**, with the lowest ranking in education compared to other sectors.

Key issues include:

- **Low student performance** in national tests like **O-NET** and international rankings such as **PISA**.
- **Educational inequality**, with many children in remote areas lacking access to quality education.
- Despite substantial investment, **educational outcomes** do not align with the allocated budget, and many graduates do not meet labor market demands.

Improving the quality of education and effectively allocating resources is urgent to enhance Thailand's global competitiveness.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☐ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

In line with teaching profession development, Office of the Teacher Civil Service and Educational Personnel (OTEPC), Ministry of Education undertakes this mission to develop teaching profession and personnel to uplift holistic quality of education. Profound information for development of teaching profession has been specifically prescribed in the Teacher Civil Service and Educational Personnel Act.

Initial training and continuous professional development: In term of teaching profession development, OTEPC provides intensive professional training for assistant teacher (first stage of teacher appointed in the public school) towards 4-year promotional development until the second step designated as a professional teacher level.

Minimum standards and qualifications required for the teaching profession: requiring the applicants who intend to attend teaching profession have to meet minimum requirements;
1. 4-year Bachelor Degree in any fields, Teaching License, Teaching experiences

Measures taken to strengthen the social status and attractiveness of the teaching profession: Strengthening the social status and attractiveness of the teaching profession in Thailand has been an ongoing challenge, and various measures have been introduced to address these issues. These measures aim to raise the profile of teaching, improve teacher

satisfaction, and incentivize talented individuals to pursue and remain in the profession. Below are some of the key initiatives and actions that have been taken to enhance the appeal of the teaching profession in Thailand.

Establishment of performance monitoring systems: Office of the Teacher Civil Service and Educational Personnel (OTEOPC), Ministry of Education, as a leading organization for teacher civil service development is assigned to implement a monitoring system for teaching profession called Performance Agreement (PA). The system allows public schools teachers to develop their teaching profession aligned with the requirements of this agreement.

- What challenges were encountered in the education personnel?

- | | |
|--|--|
| ☐ Shortages of teaching staff | ☒ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☒ High student – teacher ratio |
| ☒ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

In Thailand, several challenges have been encountered in the education personnel sector, which affects the overall quality of education. Some of the key challenges include:

1. Teacher Shortage and Distribution: There is an ongoing shortage of qualified teachers, particularly in remote and rural areas. This imbalance in teacher distribution results in overcrowded classrooms in urban centers and a lack of qualified educators in less accessible regions.
2. Quality of Teacher Training: Despite various reforms, many teachers still lack sufficient professional development and training. This includes both initial training and ongoing professional development, particularly in modern teaching methods, digital literacy, and special education.
3. Teacher Retention: High turnover rates among teachers, especially in rural areas, are a significant challenge. Many teachers leave the profession due to low salaries, poor working conditions, and limited career advancement opportunities, which affects the continuity and quality of education.
4. Inadequate Support and Resources: Teachers often face challenges in the classroom due to a lack of adequate teaching materials, resources, and technology. Additionally, limited support from school administration and the education system hampers teachers' effectiveness in implementing high-quality education.
5. Teacher Motivation and Job Satisfaction: Many educators report low job satisfaction due to limited salary increases, lack of professional recognition, and challenges related to working conditions, such as large class sizes and limited autonomy in the classroom.

6. Addressing these challenges requires targeted efforts in teacher recruitment, training, retention, and ongoing professional development to ensure a high-quality and equitable education system across the country.

3.3 Respect for human rights and fundamental freedoms

3.4 For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☒ Curriculum includes human rights education.
- ☒ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

The Right to Education in Thailand is guaranteed by the Constitution and reinforced by laws like the **National Education Act (1999)**, which ensures **12 years of free education** from primary to secondary school and mandates **nine years of compulsory education**. The government focuses on making education accessible to all children, including those in rural areas, children with disabilities, and marginalized groups, through **inclusive education** and special programs. Additionally, Thailand promotes **lifelong learning** by providing opportunities for adults to engage in vocational education, adult education, and online learning to enhance skills and employment opportunities. The government is committed to ensuring equal educational opportunities for everyone, contributing to social and economic development.

In response to SDG 4.7, Thailand is committed to ensuring that all learners acquire the knowledge and skills necessary to promote sustainable development. This includes integrating **Education for Sustainable Development (ESD)** into the education system to foster sustainable lifestyles, respect for **human rights, gender equality**, and the promotion of a **culture of peace and non-violence**. The goal is to equip learners with the mindset of **global citizenship** and an appreciation for **cultural diversity**, recognizing the role that culture plays in sustainable development. By 2030, Thailand aims to build an education system that not only provides academic knowledge but also empowers individuals to actively contribute to

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Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

the achievement of the **Sustainable Development Goals (SDGs)** and the broader goal of a more inclusive, equitable, and sustainable society.

3.5 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

In Thailand, the operation of private schools, international schools, private vocational institutions, and informal education providers is guided by government policies designed to ensure equity, inclusion, and quality in education. The government has established frameworks to ensure that non-state education does not contribute to inequality or discrimination. These policies aim to ensure that non-state institutions offer relevant educational alternatives that complement public education while maintaining quality standards.

The government's provisions related to prohibiting discrimination are outlined in national laws, and these provisions apply equally to non-state educational institutions. This ensures that all educational providers, whether public or private, adhere to principles of fairness, accessibility, and inclusivity, offering equitable opportunities for all students.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

The **National Education Act** of Thailand serves as a fundamental framework for the development of the country's education system. It prioritizes the rights of all students to access quality education, regardless of whether they attend public or non-state institutions. The Act emphasizes the importance of educational equity, allowing non-state schools to operate while ensuring mechanisms are in place to guarantee fair access and non-discrimination. It mandates that private schools align their curricula with national educational goals, promoting diversity in educational approaches. At the same time, the Act ensures that non-state institutions meet minimum quality standards, preventing exploitation and ensuring that these schools provide relevant, competitive educational alternatives.

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

The **Child Protection Act B.E. 2546**, Section 23, states that guardians are responsible for the care, guidance, and development of a child under their guardianship in ways that are appropriate to local traditions, customs, and culture. However, this care must not fall below the minimum standards set out in the relevant ministerial regulations. Additionally, guardians are required to protect the child from potentially harmful situations, both physical and mental, ensuring the child's well-being and safety at all times.

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☒ School fees
- ☒ School closures
- ☐ Other

- [Please elaborate:](#)

Non-state education in Thailand includes private schools, international schools, and vocational institutions, offering diverse alternatives to the public education system. These schools provide specialized curricula, including international programs, and cater to different student needs, particularly in urban areas.

However, challenges include **high tuition fees**, limiting access for low-income families, **quality discrepancies** due to inconsistent standards and regulation, and **regional disparities**, with non-state schools mainly concentrated in cities. Issues with **teacher qualifications** and differences in **curricula** also exist.

The Thai government is working to address these issues by improving **regulations**, ensuring better **quality control**, and increasing **accessibility** through scholarships and partnerships, aiming for a more inclusive and equitable education system.

- [What challenges were encountered in non-state education provision?](#)

- ☐ Low quality educational infrastructure and materials
- ☐ Low number of professionally trained teachers
- ☐ High student – teacher ratio
- ☒ Other:
- ☐ Issues in terms of equity and inclusion
- ☒ Weak government regulatory and monitoring capacity

Economic and social issues affecting the non-state education actors in providing quality education

- Please elaborate. Brief quantitative information may be added.

Non-state education in Thailand, including private and international schools, faces several key challenges. **Accessibility** is a major issue, as high tuition fees make it difficult for low-income families to afford, creating inequality in educational opportunities. Moreover, many non-state schools are concentrated in urban areas, leaving students in rural regions with fewer options for quality education.

There are also concerns about **quality assurance** and **regulation**. Non-state schools may not always adhere to national education standards, and some lack proper oversight, leading to differences in teaching quality. Teacher qualifications and professional development vary across schools, which can affect the overall education experience for students.

Inclusivity is another challenge, as non-state schools may unintentionally exclude marginalized groups, such as students from lower-income families or those with disabilities, due to selective admissions policies. To address these challenges, Thailand needs better regulation of non-state schools, increased financial support for disadvantaged students, and efforts to ensure these institutions contribute to a more equitable and inclusive education system.

3.6 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Thai government 's policy of transforming education in the digital era focuses on integrating technology to improve access, quality, and inclusivity in the education system. The Thai government has made significant efforts to modernize education by embracing digital tools and online platforms to support learning and teaching processes. Key elements of Thailand's digital education transformation include:

1. **Digital Literacy and Skills Development:** The government has prioritized **digital literacy** as a core component of the national curriculum. This involves teaching students the skills needed to navigate and use digital tools effectively, preparing them for future careers in a technology-driven world.
2. **E-Learning Platforms and Online Education:** In response to the increasing demand for flexible learning, the Thai government has developed several **e-learning platforms**. These platforms are designed to support blended learning models, where students can access content both online and in traditional classroom settings.
3. **Training for Educators:** To ensure that teachers can effectively integrate technology into their teaching, the government has emphasized **teacher professional development**. Online training programs and workshops are available to help teachers acquire the skills needed to use digital tools, manage e-learning environments, and adapt their teaching methods for digital education.
4. **Equity in Access:** Thailand has focused on ensuring that all students, regardless of geographic location or socioeconomic status, have access to digital learning tools. **Public-private partnerships** and government subsidies have been used to provide affordable devices and internet access, particularly for students in rural or underserved areas.
5. **Innovative Educational Technologies:** The government supports the adoption of cutting-edge **educational technologies**, such as artificial intelligence (AI), virtual reality (VR), and augmented reality (AR), to enhance the learning experience. These technologies are used to create immersive learning environments and to provide personalized learning pathways for students.
6. **National Digital Education Plans:** Thailand has implemented the **National Education Plan for the Digital Era**, which outlines strategies for digitalizing the education system, enhancing educational content, improving infrastructure, and fostering innovation in teaching and learning. This plan aims to make Thailand's education system more adaptable to future challenges and opportunities.

Thailand's policy on transforming education in the digital era is a comprehensive effort to modernize the education system, making it more accessible, equitable, and aligned with the demands of the digital age. While challenges remain, these policies aim to prepare students and educators for the future, ensuring that technology enhances learning and promotes lifelong learning opportunities.

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content

⁴⁵ Lack of internet connection, basic infrastructure or devices.

is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☑ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☑ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☑ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☑ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

To remove barriers to digital challenges in education in Thailand, several strategic steps can be implemented to improve access to technology, digital literacy, and infrastructure. Key measures include:

1. Expanding Digital Infrastructure

- **Increase internet accessibility:** Improve high-speed internet coverage, especially in rural and underserved areas, to ensure equal access to online resources for all students and teachers.
- **Provide affordable technology:** Offer subsidies or financial support to provide low-cost devices such as laptops, tablets, or smartphones for students in need, ensuring that all learners have access to digital tools.

2. Improving Teacher Training

- **Digital skills training:** Equip teachers with the necessary digital literacy skills and tools to integrate technology effectively into the classroom. Regular professional development programs should focus on using educational technology, online learning platforms, and digital teaching methods.
- **Blended learning methods:** Train teachers in hybrid or blended learning models that combine face-to-face teaching with digital platforms, helping them adapt to both online and offline environments.

3. Developing Relevant Digital Content

- **Create localized content:** Develop high-quality digital educational materials in Thai and other local languages to ensure relevance and accessibility for all students. Content should be aligned with the national curriculum and tailored to the needs of diverse learners.

- **Open educational resources (OER):** Promote the use of free and open educational resources to reduce costs for students and allow easy access to a wide range of digital learning materials.

4. Promoting Digital Literacy Among Students

- **Incorporate digital skills into the curriculum:** Teach students essential digital skills such as using the internet, software tools, and coding to prepare them for the modern workforce and future learning needs.
- **Cybersecurity education:** Ensure that students understand online safety, privacy issues, and ethical behavior in the digital world.

5. Bridging the Urban-Rural Digital Divide

- **Mobile learning solutions:** Implement mobile-based learning initiatives for students in remote areas, allowing them to access educational content via smartphones where other infrastructure is limited.
- **Community learning hubs:** Set up community centers or digital learning hubs equipped with computers and internet access in rural areas, allowing students without personal devices to participate in digital learning.

6. Ensuring Government and Private Sector Collaboration

- **Public-private partnerships:** Encourage collaboration between the government, private sector, and NGOs to provide digital devices, infrastructure, and training programs. Corporate social responsibility initiatives can also play a vital role in supporting digital education.
- **Policy support:** The government should create supportive policies and allocate sufficient funding to bridge the digital gap in education, with a focus on equitable access and long-term sustainability.

7. Addressing Equity and Inclusivity

- **Assist marginalized groups:** Provide additional support for students with disabilities, those from low-income families, and ethnic minorities to access digital education. This can include specialized learning tools, scholarships, or dedicated programs.
- **Gender equity:** Ensure that girls and boys have equal access to digital tools and learning opportunities, especially in rural or disadvantaged areas where traditional gender roles may limit access to education.

By addressing these key areas, Thailand can effectively overcome digital barriers in education, ensuring that all students benefit from the opportunities provided by technology and modern learning tools.

- What challenges were encountered in digital education provision (check all that apply)?

☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways

☐ Limited access to internet and/or electricity

☒ Limited access to hardware (devices, chargers, etc.)

- | | |
|---|--|
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in sustainably financing digital education solutions at national scale |
| ☐ Other: | ☒ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

Thailand continues to face challenges in closing the **digital divide** in education. Key issues include:

1. **Unequal access to infrastructure:** Rural areas often lack high-speed internet, making online learning difficult compared to urban areas.
2. **High technology costs:** Digital devices and internet services are too expensive for low-income families.
3. **Limited digital skills:** Both students and teachers in remote areas often lack the necessary digital literacy for effective online education.
4. **Educational inequality:** Urban schools have more digital resources than rural schools, widening the education gap.
5. **Insufficient government support:** Policies promoting digital education face challenges in consistent implementation across regions.

Addressing these issues is essential to ensure equal educational opportunities for all students across the country.

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☒ Monitoring results are made public. Please provide the link:

<http://www.onec.go.th>

☒ Monitoring processes are participatory, inclusive and regular.

☒ Sector-wide and multisector approach is adopted to education governance.

☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☐ The decision-making process for the allocation of resources to education is transparent.

☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

☐ Budgetary constraints

☐ Absence of supportive/ inconsistent/obsolete legal and policy environment

☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels

☒ Lack or weakness of monitoring systems – including the lack of reliable data

☐ Poor dialogue with teachers' trade unions

☐ Other:

Monitoring mechanisms to assess compliance with the right to education are crucial for ensuring that Thailand meets both national standards and international human rights commitments. These mechanisms focus on evaluating the availability, accessibility, acceptability, and adaptability of education services. Despite progress in establishing systems to monitor educational quality, challenges persist in using data for decision-making, promoting accountability, and ensuring equitable access to quality education.

Financial Resource Allocation in Education

The allocation of financial resources is key to achieving free, quality public education in Thailand. While the government has made significant efforts to fund the education sector, particularly by prioritizing universal access, challenges remain in ensuring that resources are effectively and equitably distributed. Students from marginalized or disadvantaged backgrounds often face barriers to accessing these resources, indicating a need for better resource targeting and more equitable funding practices.

Sector-wide and Multisectoral Approach

Thailand has increasingly adopted a sector-wide, multisectoral approach to education governance. This strategy integrates education policies with other sectors such as health, social welfare, labor,

and technology, enhancing coordination and efficiency. By addressing education holistically, this approach aims to improve outcomes and ensure that broader societal needs are met.

Decentralization in Education

Decentralization has been introduced in Thailand's education system to give local authorities more autonomy in managing education, with the goal of improving relevance, efficiency, and accountability. This shift allows for education to be tailored to local contexts and specific needs. However, the implementation of decentralization is still evolving, and challenges remain in fully realizing its benefits, particularly in terms of capacity building and ensuring local decision-making aligns with national educational objectives.

In summary, Thailand is making progress in improving education governance, financial allocation, and monitoring, but addressing issues such as equitable resource distribution, effective decentralization, and data-driven accountability will be essential for achieving long-term success in education.

- Please elaborate. Brief quantitative information may be added.

Thailand's education system faces several significant challenges, primarily due to **limited stakeholder involvement** and **lack of coordination** across various levels of governance. This fragmentation weakens the effectiveness of educational policies, reducing both the quality and accessibility of education. Furthermore, the system suffers from **inadequate monitoring mechanisms** and **unreliable data**, making it difficult to assess educational outcomes, identify gaps, and ensure accountability.

Without accurate data and robust monitoring systems, it becomes challenging to track progress, evaluate the impact of educational reforms, or adjust policies as needed. As a result, interventions may be poorly targeted, and efforts to address inequities in education are less effective. To improve the education system, there is a need for stronger coordination among stakeholders, better data collection, and effective monitoring to ensure that policies are well-implemented and that equitable educational opportunities are achieved for all students.

Key Solutions:

1. **Increase Stakeholder Involvement:** Engage educators, parents, and communities in decision-making in education management.
2. **Enhance Governance Coordination:** Improve cooperation across national and local authorities.
3. **Strengthen Monitoring Systems:** Develop reliable data collection and evaluation systems to inform policy decisions and improve accountability.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- The **Thai National Commission for UNESCO** collaborates with national specialized committees in UNESCO's key areas of focus to promote an integrated and cross-sectoral approach to education. These committees unite stakeholders from various sectors, such as education, science, social sciences, and communication, to work toward common educational goals. By fostering coordination and collaboration among these diverse sectors, the committees are able to address complex educational challenges, enhance policy implementation, and ensure that resources are allocated effectively to meet the diverse needs of all students.

This integrated governance model enables a more **holistic and adaptive approach** to addressing educational issues. It ensures that education policies and initiatives are aligned with broader social and developmental goals, allowing for more efficient use of resources and better outcomes for students. The coordination between sectors strengthens the overall educational framework and helps create a more inclusive and effective system for learning.

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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